

Contract Essentials Checklist

Before you sign (or send) any freelance agreement, check that it covers every item below. A one-page contract that covers these beats a handshake and a 40-page template you don't understand.

Note: This checklist is educational, not legal advice. Laws vary by country and state. For high-value engagements, have a lawyer review your template once — it's a one-time cost you'll reuse for years.

The Money Section

- ☐ **Total price or rate** — and whether tax is included
- ☐ **Deposit** — amount (25–50% is standard) and the statement that work begins after it clears
- ☐ **Payment schedule** — tied to dates or milestones, not to the client's satisfaction (“upon final approval” lets an unresponsive client delay payment forever; use “upon delivery” instead)
- ☐ **Payment window** — Net 7 or Net 14; Net 30 favors the client, not you
- ☐ **Late fee** — e.g., 1.5% per month, and the right to pause work on overdue accounts
- ☐ **Kill fee** — what they owe if they cancel mid-project (commonly: deposit is non-refundable + payment for all work completed to date)

The Scope Section

- ☐ **Deliverables listed specifically** — “5 pages: Home, About, Services, Blog index, Contact,” not “a website”
- ☐ **Revision rounds** — exact number included, and the rate for additional rounds
- ☐ **Change process** — scope changes require written agreement and a quoted price before work continues
- ☐ **Client responsibilities** — what they provide (content, access, feedback) and the consequence of delay (“timeline extends day-for-day when client materials are late”)
- ☐ **Timeline** — with the start date defined as “contract signed + deposit received,” not a calendar date you might miss waiting on them

The Protection Section

- ☐ **IP transfer on final payment** — the client owns the work *after* the last invoice is paid, not before
- ☐ **Your portfolio rights** — you may display the work and name the client (unless NDA'd)
- ☐ **Your tools stay yours** — pre-existing code, templates, and processes you bring are licensed, not sold

- ☐ **Limitation of liability** — your liability is capped (commonly at the total fees paid)
- ☐ **Termination clause** — either party can exit with written notice; client pays for work completed
- ☐ **Independent contractor statement** — you're not an employee; you control how the work is done

Red Flags in Client-Supplied Contracts

Watch for these when a client sends *their* paper:

1. **“Work for hire” + payment Net 60/90** — they own everything immediately but pay you in three months.
2. **Unlimited revisions** or approval-based payment triggers.
3. **Non-compete clauses** that block you from working in your own industry.
4. **Indemnification that's one-way** — you cover their legal risk, they cover nothing.
5. **IP transfer on delivery instead of on payment** — your only leverage disappears.

You can push back on all of these. A simple, effective line: *“My standard terms include [X]; happy to walk through why — it protects both of us.”*

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